

2010 英语 (一) Part A · Text 2

精读全流程：原文、做题、笔译、订正、重做、选项与复读

文章主题	通读后用一句话自行概括
限时阶段	18-22 分钟：先看题干，不看选项；读文不查词
笔译阶段	按段笔译、按段核对；先写粗译，不追求参考译文式中文
重做阶段	全文核对完成后，统一重做 26-30 题
第二天	遮住译文重读、重做题、复查错因与替换词

连续干净原文用于真实检测；笔译原文用于逐段输出；原文修改页用于在英文上订正。答案与解析请对照纸质版。

限时第一读：先看 5 个英文题干，不看选项

No.	Question stem - English only	Signal
26	Business-method patents have recently aroused concern because of	
27	Which of the following is true of the Bilski case?	
28	The word "about-face" (Line 1, Para. 3) most probably means	
29	We learn from the last two paragraphs that business-method patents	
30	Which of the following would be the subject of the text?	

标出生词但不停下；标出转折 / 因果 / 让步；读到相关段落才回来看选项。

我的英文题干导航标记

干净原文 A：限时读文

现在开始计时。此处没有结构、词义或逻辑提示；读到相应段落，就做相应题目。

[P1] Over the past decade, thousands of patents have been granted for what are called business methods. Amazon.com received one for its "one-click" online payment system. Merrill Lynch got legal protection for an asset allocation strategy. One inventor patented a technique for lifting a box.

[P2] Now the nation's top patent court appears completely ready to scale back on business-method patents, which have been controversial ever since they were first authorized 10 years ago. In a move that has intellectual-property lawyers abuzz, the U.S. Court of Appeals for the Federal Circuit said it would use a particular case to conduct a broad review of business-method patents. In re Bilski, as the case is known, is "a very big deal," says Dennis D. Crouch of the University of Missouri School of Law. It "has the potential to eliminate an entire class of patents."

[P3] Curbs on business-method claims would be a dramatic about-face, because it was the Federal Circuit itself that introduced such patents with its 1998 decision in the so-called State Street Bank case, approving a patent on a way of pooling mutual-fund assets. That ruling produced an explosion in business-method patent filings, initially by emerging Internet companies trying to stake out exclusive rights to specific types of online transactions. Later, more established companies raced to add such patents to their files, if only as a defensive move against rivals that might beat them to the punch. In 2005, IBM noted in a court filing that it had been issued more than 300 business-method patents, despite the fact that it questioned the legal basis for granting them. Similarly, some Wall Street investment firms armed themselves with patents for financial products, even as they took positions in court cases opposing the practice.

[P4] The Bilski case involves a claimed patent on a method for hedging risk in the energy market. The Federal Circuit issued an unusual order stating that the case would be heard by all 12 of the court's judges, rather than a typical panel of three, and that one issue it wants to evaluate is whether it should "reconsider" its State Street Bank ruling.

[P5] The Federal Circuit's action comes in the wake of a series of recent decisions by the Supreme Court that has narrowed the scope of protections for patent holders. Last April, for example, the justices signaled that too many patents were being upheld for "inventions" that are obvious. The judges on the Federal Circuit are "reacting to the anti-patent trend at the Supreme Court," says Harold C. Wegner, a patent attorney and professor at George Washington University Law School.

2.2

第一次做题：作答 26-30 题

现在才看选项。先独立完成五道题；需要时回原文定位。

26. Business-method patents have recently aroused concern because of

- [A] their limited value to businesses.
- [B] their connection with asset allocation.
- [C] the possible restriction on their granting.
- [D] the controversy over their authorization.

27. Which of the following is true of the Bilski case?

- [A] Its ruling complies with the court decisions.
- [B] It involves a very big business transaction.
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28. The word "about-face" (Line 1, Para. 3) most probably means

- [A] loss of goodwill.
- [B] increase of hostility.
- [C] change of attitude.
- [D] enhancement of dignity.

29. We learn from the last two paragraphs that business-method patents

- [A] are immune to legal challenges.
- [B] are often unnecessarily issued.
- [C] lower the esteem for patent holders.
- [D] increase the incidence of risks.

30. Which of the following would be the subject of the text?

- [A] A looming threat to business-method patents.
- [B] Protection for business-method patent holders.
- [C] A legal case regarding business-method patents.
- [D] A prevailing trend against business-method patents.

3.1

第 1 段：逐句笔译与原文订正

直接在英文上标记主干和逻辑；长句留两行，短句留一行。

S1 Over the past decade, thousands of patents have been granted for what are called business methods.

S2 Amazon.com received one for its "one-click" online payment system.

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段落中心思想（用一句话概括）

3.2

第 2 段：逐句笔译与原文订正

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S2 That ruling produced an explosion in business-method patent filings, initially by emerging Internet companies trying to stake out exclusive rights to specific types of online transactions.

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3.5

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4

全文核对后：正式重做 26-30 题

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5 原文 D：第二次做题后定位

先看解析，回原文再找一次定位句和同义替换。

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全篇压缩与第二天复读

段落	段落功能	一句话压缩（自己写）
P1		
P2		
P3		
P4		
P5		

全文主题与作者态度（自己写）

第二天复读（不看纸质译文和解析）

- ☐ 我能用 30 秒说清全文主线：
- ☐ 我能遮住答案重做 26-30：
- ☐ 我仍会错 / 不顺的点：
- ☐ 下次遇到相似结构，我要先看：